

**Sixty-ninth Legislative Assembly of North Dakota  
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2257  
(Senator Myrdal)

AN ACT to amend and reenact subsection 5 of section 12.1-23-05 of the North Dakota Century Code, relating to grading of theft offenses of values not exceeding five hundred dollars; and to provide a penalty.

**BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:**

**SECTION 1. AMENDMENT.** Subsection 5 of section 12.1-23-05 of the North Dakota Century Code is amended and reenacted as follows:

5. a. Theft under this chapter of property or services of a value not exceeding five hundred dollars is a class B misdemeanor for a first offense if:
  - (1) The theft was committed by shoplifting; or
  - (2) The following three factors are met:
    - (a) The theft was not committed by threat;
    - (b) The theft was not committed by deception by one who stood in a confidential or fiduciary relationship to the victim of the theft; and
    - (c) The defendant was not a public servant or an officer or employee of a financial institution who committed the theft in the course of official duties.
- b. The special classification provided in paragraph 2 of subdivision a applies if the offense is classified under this subsection in the charge or if, at sentencing, the required factors are established by a preponderance of the evidence.
- c. A second or third offense under paragraph 1 of subdivision a, or an equivalent ordinance, occurring within three years is a class A misdemeanor. A fourth or subsequent violation under paragraph 1 of subdivision a, or an equivalent ordinance, occurring within four years is a class C felony.
- d. A sentence imposed under this subsection must be accompanied by a written statement by the court providing notice of any offense under this section which provides an enhanced penalty, including the penalty for a subsequent offense.

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President of the Senate

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Speaker of the House

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Secretary of the Senate

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Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2257.

Senate Vote:    Yeas 46            Nays 0            Absent 1

House Vote:    Yeas 76            Nays 13           Absent 5

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Secretary of the Senate

Received by the Governor at \_\_\_\_\_ M. on \_\_\_\_\_, 2025.

Approved at \_\_\_\_\_ M. on \_\_\_\_\_, 2025.

\_\_\_\_\_  
Governor

Filed in this office this \_\_\_\_\_ day of \_\_\_\_\_, 2025,

at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Secretary of State